

25CV03557 Shirley Crews vs The Ritz-Carlton Hotel Company LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-14

Motion: CMC; Motion: Compel re FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET THREE

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv03557>

Source SHA-256: 010c25bf84132feb820855b288cb7c17e88c326085a4abc5998c8efc47d54e81

Tentative Ruling: Shirley Crews vs The Ritz-Carlton Hotel Company LLC

Case Number

25CV03557

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/14/2026 - 10:00

Nature of Proceedings

CMC; Motion: Compel re FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET THREE

Tentative Ruling

Shirley Crews v. SB Hotel LLC, et al.

Case No. 25CV03557

Hearing Date: September 14, 2026

HEARING: Motion of Plaintiff Shirley Crews to Compel Further Responses to Requests for Production, Set Three

ATTORNEYS: For Plaintiff Shirley Crews: Michael Shaolian, The Shaolian Law Firm P.C.

For Defendant Ritz-Carlton Hotel Company, LLC: Stacey L. Tokunaga, Rick Jacob Nehora, Law Offices of Stacey L. Tokunaga

TENTATIVE RULING:

The court grants in part the motion of plaintiff Shirley Crews to compel further responses to requests for production, set three. On or before September 29, 2026, defendant Ritz-Carlton Hotel Company, LLC, shall serve supplemental, verified, and code-compliant responses to request numbers 29, 30, 31, 33 (in part), 43, 44, 50, 51, 53 (in part), 54, 55, 56, 58, 59, 60, 63, 64, 68, and 72, and produce all responsive documents. Any documents withheld on grounds of any privilege or protection shall be placed on a privilege log that is served on or before September 29, 2026. To the extent defendant has not verified its previous responses to requests for production, set 3, it shall serve verifications on or before September 29, 2026. The court awards monetary sanctions in the amount of \$2,600 in favor of plaintiff and payable by defendant and its counsel of record, Law Offices of Stacey L. Tokunaga, to counsel for plaintiff on or before October 15, 2026. The motion is denied in all other respects.

Background:

On June 6, 2025, plaintiff Shirley Crews filed a complaint against defendants Ruby SB Hotel LLC and Marriott International, Inc., asserting two causes of action for general negligence and premises liability.

As alleged in the complaint: On June 2, 2024, plaintiff slipped and fell at Marriott-Ritz-Carlton Bacara, 8301 Hollister Ave, Santa Barbara (Premises). While plaintiff was walking toward the restroom she suddenly and unexpectedly came into contact with a slippery substance on the floor, causing her to slip and fall. Plaintiff was injured as a result of this unsafe and dangerous condition. The injuries resulted from inadequate signing, inadequate floors, obstructed walkways, or a failure to warn plaintiff of a dangerous condition. Defendants owned, leased, occupied, or controlled the Premises.

On July 9, 2025, plaintiff filed a form amendment to the complaint, seeking to substitute The Ritz-Carlton Hotel Company, LLC (Defendant) for fictitious party Doe 1.

On July 9, 2025, plaintiff also filed a request for dismissal without prejudice as to defendants Ruby SB Hotel LLC and Marriott International, Inc. The requested dismissal was entered that same day.

On July 17, 2025, Defendant filed an answer to the complaint, generally denying the allegations therein and setting forth eight affirmative defenses.

On January 20, 2026, plaintiff served her third set of requests for production on Defendant, containing request numbers 25 through 73. (Declaration of Michael Shaolian [Shaolian Decl.], Ex. F.) On February 24, Defendant served objections only in response. (Id., Ex. G.) The parties met and conferred and agreed upon an extension for supplemental responses. (Id., ¶ 9.) Defendant served supplemental responses on April 2, a day after the agreed upon extension according to plaintiff. (Id., ¶ 10 & Ex. I.) The supplemental responses did not resolve all issues. The parties further met and conferred but were unable to resolve the issues in this motion. (Id., ¶¶ 11-17.)

On May 12, 2026, plaintiff filed a motion to compel further responses and document production as to plaintiff's requests for production, set three, Nos. 29, 30, 31, 33, 43, 44, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 68, 69, 70, and 72 (collectively, RFPs). This motion is supported by the Shaolian Decl., a memorandum, a separate statement, and a proof of service indicating electronic service on Defendant's counsel of record, William E. Jemmott, at wjemmott@sltlaw.com and civilteam@sltlaw.com.

On July 8, 2026, Defendant filed a notice of a different primary handling attorney, Rick Jacob Nehora, within the same law firm.

On September 10, 2026, plaintiff filed a reply indicating that an opposition had been served by Defendant on September 9, 2026. This opposition was apparently not filed, as there is no opposition or response by Defendant in the court's file. Assuming an opposition was served on September 9, as noted in plaintiff's reply, "[a]ll papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days ... before the hearing." (Code Civ. Proc., § 1005, subd. (b).) As noted by plaintiff, "[o]pposition papers were due nine court days [before this hearing] — [on or before] August 31, 2026, excluding the Labor Day holiday." (Reply, p. 5, ll. 14-15; see Code Civ. Proc., § 1005, subd. (b).) Any opposition served (but not filed) on September 9 is substantially late. Under these circumstances, the court declines to consider this late-served, unfiled opposition by Defendant, and will proceed with this hearing.

Analysis:

(1) Applicable Discovery Standards

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action." (Code Civ. Proc., § 2031.010, subd. (a).)

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.)

"A trial court must be mindful of the Legislature's preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery" (Williams v. Superior Court (2017) 3 Cal.5th 531, 540 (Williams).) "In the absence of contrary court order, a civil litigant's right to discovery is broad.... This right includes an entitlement to learn 'the identity and location of persons having knowledge of any discoverable matter.' [Citation.] Section 2017.010 and other statutes governing discovery 'must be construed liberally in favor of disclosure unless the request is clearly improper by virtue of well-established causes for denial.' [Citation.] This means that 'disclosure is a matter of right unless statutory or public policy considerations clearly prohibit it.' [Citation.]" (Id. at p. 541.)

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: [¶] (1) A statement of compliance with the demand is incomplete. [¶] (2) A representation of inability to comply is inadequate, incomplete, or evasive. [¶] (3) An objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310, subd. (a).)

"A motion under subdivision (a) shall comply with each of the following: [¶] (1) The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand. [¶] (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040. [¶] (3) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute." (Code Civ. Proc., § 2031.310, subd. (b).)

Plaintiff is the moving party. Plaintiff has the burden to show good cause justifying the production of the requested documents. (Evid. Code § 500; Code Civ. Proc., § 2031.310, subd. (b).) Defendant is the opposing party, which has the

burden to justify its objections and failure to provide the requested discovery. (Williams, supra, 3 Cal.5th at pp. 541, 549.)

(2) Requests at Issue

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 29: All employee work schedules, duty rosters, time cards, and attendance records for all housekeeping department employees assigned to the SUBJECT VICINITY for the period of May 1, 2024, through June 30, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 29: Despite a diligent inquiry into the information requested, responding party is unable to respond to the request because responsive documents no longer exist.

RULING: The court will grant the motion. This RFP for work schedule information in the area of the accident is reasonably calculated to identify potential witnesses and other information pertaining to the slip and fall accident. (Code Civ. Proc., § 2017.010.) Good cause for the production of these documents has been established. Defendant has not made a code-compliant representation of inability to comply. "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 30: All employee work schedules, duty rosters, time cards, and attendance records for all food and beverage department employees assigned to the bistro area at the SUBJECT PROPERTY for the period of June 1, 2024, through June 2, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 30:

Despite a diligent inquiry into the information requested, responding party is unable to respond to the request because responsive documents no longer exist.

RULING: The court will grant the motion. This RFP for work schedule information in the bistro area is reasonably calculated to identify potential witnesses and other information pertaining to the slip and fall accident. (Code Civ. Proc., § 2017.010.) Good cause for the production of these documents has been established. Defendant has not made a code-compliant representation of inability to comply. "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 31: All organizational charts, staffing matrices, and departmental rosters IDENTIFYING the names, titles, positions, and reporting relationships of all employees, housekeeping and food and beverage personnel at the SUBJECT VICINITY on June 2, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 31:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence.

RULING: The court will grant the motion. This RFP is reasonably calculated to identify potential witnesses pertaining to the accident at issue in this action. "Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 33: The complete and unredacted investigation file maintained by YOU or YOUR insurer RELATING TO the SUBJECT INCIDENT, including but not limited to all incident reports, investigator notes, witness interview notes, photographs, diagrams, internal memoranda, correspondence, activity logs, and chain of custody records.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 33: Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information, the request seeks attorney client and attorney work product information.

RULING: The court will grant the motion in part. This RFP is reasonably calculated to lead to admissible evidence pertaining to the cause and circumstances of the accident at issue in this action. The relevance and vagueness objections are overruled. If any documents are withheld on the basis of privilege, Defendant must provide a privilege log. "If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240, subd. (c)(1).)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 43: All incident reports, accident reports, injury reports, or guest complaint records RELATING TO slips, trips, or falls occurring in any food and beverage service areas, restaurants, bistros, or dining facilities at the SUBJECT PROPERTY for the three-year period preceding June 2, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 43:

Objection the request as phrased is not reasonably calculated to lead to relevant or admissible evidence. The alleged incident occurred in a discrete location in one bistro.

RULING: The court will grant the motion. The complaints and reports pertaining to prior slip and falls at the Premises dining facilities relate to claims or defenses in this action. (Code Civ. Proc., § 2017.010.) Under California law, prior incidents "substantially similar to the one in question" may be admissible as to "whether or not the condition as it existed was in fact a dangerous one." (Laird v. T.W. Mather, Inc. (1958) 51 Cal.2d 210, 220 (Laird).) The relevance objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 44: All incident reports, accident reports, injury reports, or guest complaint records RELATING TO slips, trips, or falls occurring in or adjacent to restroom facilities at the SUBJECT PROPERTY for the three-year period preceding June 2, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 44:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence[.] The alleged incident did not take place in the restroom.

RULING: The court will grant the motion. The complaints and reports pertaining to prior slip and falls near Premises restroom facilities relate to claims or defenses in this action. (Code Civ. Proc., § 2017.010.) Under California law, prior incidents "substantially similar to the one in question" may be admissible as to "whether or not the condition as it existed was in fact a

dangerous one.” (Laird, supra, 51 Cal.2d at p. 220.) The relevance objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 50: All DOCUMENTS RELATING TO the SUBJECT POLICIES in effect at the time of the SUBJECT INCIDENT for floor inspections/sweep frequency and responsible personnel for the

SUBJECT VICINITY.

DEFENDANT’S RESPONSE TO REQUEST FOR PRODUCTION NO. 50:

Responding party produces all responsive documents in its custody and control namely, “Public Area Attendant Checklist”.

RULING: The court will grant the motion. The subject policies “means the written policies regarding floor inspection/sweep, spill response, warning signage, and incident reporting in effect at the time” of the slip and fall accident in this action. (Shaolian Decl., Ex. F at p. 7, ll. 3-5.) These policies are reasonably calculated to lead to admissible evidence on the issues of duty of care, breach, and potential knowledge of dangerous condition. (Code Civ. Proc., § 2017.010.) “If the dangerous condition is brought about by third persons, ‘then to impose liability the owner must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises.’ ” (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1208.) If Defendant has no responsive written policies, it must make a code-compliant representation of inability to comply. (Code Civ. Proc., § 2031.230.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 51: All DOCUMENTS RELATING TO the SUBJECT POLICIES in effect at the time of the SUBJECT INCIDENT for identification, containment, cleanup, and post-cleanup verification of spills in the SUBJECT VICINITY, and the immediately prior version if different (limited to January 1, 2022 through June 3, 2024).

DEFENDANT’S RESPONSE TO REQUEST FOR PRODUCTION NO. 51: Responding party produces all responsive documents in its custody and control namely, “Public Area Attendant Checklist”.

RULING: The court will grant the motion. These policies are reasonably calculated to lead to admissible evidence on the issues of duty of care, breach, and potential knowledge of dangerous condition. (Code Civ. Proc., § 2017.010.) If Defendant has no responsive written policies, it must make a code-compliant representation of inability to comply. (Code Civ. Proc., § 2031.230.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 52: All DOCUMENTS in effect at the time of the SUBJECT INCIDENT for placement, use, and removal of “wet floor”/caution signage in the SUBJECT VICINITY, and the immediately prior

version if different (limited to January 1, 2021 through June 3, 2024).

DEFENDANT’S RESPONSE TO REQUEST FOR PRODUCTION NO. 52: Despite a diligent inquiry into the information requested, responding party is unable to respond to the request because responsive documents have never existed.

RULING: The court will deny the motion. The response indicates no such documents have ever existed. (Code Civ. Proc., § 2031.230.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 53: All DOCUMENTS that set forth, describe, or reflect the written procedure(s) in effect at the time of the SUBJECT INCIDENT for incident reporting and escalation applicable to the

SUBJECT LOCATION, and the immediately prior version if different (limited to January 1, 2021 through June 3, 2024).

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 53: Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information, the request seeks attorney client and attorney work product information.

RULING: The court will grant the motion in part. This RFP is reasonably calculated to lead to admissible evidence pertaining to the accident at issue in this action. The relevance and vagueness objections are overruled. If any documents are withheld on the basis of privilege, Defendant must provide a privilege log. "If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240, subd. (c)(1).)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 54: All DOCUMENTS from the personnel file of HARVEY KANO (with personal identifiers such as SSN, DOB, tax, immigration, and health information redacted), limited to: (a) job application and résumé; (b) job descriptions for positions held January 1, 2023 through June 30, 2024; (c) signed policy acknowledgments in effect on June 2, 2024 for SUBJECT POLICIES; (d) training records, certificates, and sign-in sheets on the SUBJECT POLICIES dated January 2023 through June 30 2024; (e) performance evaluations, counseling, or discipline addressing safety/compliance, housekeeping/inspection, spill response, or signage dated January 1, 2023 through June 30, 2024; and (f) any written STATEMENT or incident report authored or signed by HARVEY KANO regarding the SUBJECT INCIDENT.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 54:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will grant the motion. Plaintiff established that Harvey Kano was responsible for the area at the Premises at issue in this action and cleaned up the area after the incident. (Shaolian Decl., Ex. B at p. 7, ll. 9-28.) Kano's qualifications and personnel file are pertinent to the issue of duty of care and breach. (Code Civ. Proc., § 2017.010.) Privacy is a qualified privilege decided on a case-by-case basis: "The need for discovery is balanced against the magnitude of the privacy invasion, and the party seeking discovery must make a higher showing of relevance and materiality than otherwise would be required for less sensitive material." (Rancho Publications v. Superior Court (1999) 68 Cal.App.4th 1538, 1549 (Rancho).) The probative value of this discovery outweighs the privacy interests under these circumstances. Defendant has not submitted evidence in support of its privacy objections. These objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 55:

All DOCUMENTS that set forth, describe, or reflect training completed by HARVEY KANO concerning SUBJECT POLICIES within 5 years of the SUBJECT INCIDENT.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 55:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will grant the motion. Plaintiff has submitted facts justifying the production of documents as to training relating to slip and falls and related issues. Plaintiff established that Harvey Kano was responsible for the area at the Premises at issue in this action and cleaned up the area after the incident. (Shaolian Decl., Ex. B at p. 7, ll. 9-28.) Kano's

qualifications and personnel file are pertinent to the issue of duty of care and breach. (Code Civ. Proc., § 2017.010.) Privacy is a qualified privilege decided on a case-by-case basis. (Rancho, supra, 68 Cal.App.4th at p. 1549.) The probative value of this discovery outweighs the privacy interests under these circumstances. Defendant has not submitted evidence in support of its privacy objections. These objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 56:

All DOCUMENTS provided to HARVEY KANO RELATING TO SUBJECT POLICIES. If materials were revised between January 1, 2023, and June 3, 2024, produce the immediately prior version.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 56:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will grant the motion. Plaintiff established that Harvey Kano was responsible for the area at the Premises at issue in this action and cleaned up the area after the incident. (Shaolian Decl., Ex. B at p. 7, ll. 9-28.) Kano's qualifications and personnel file are pertinent to the issue of duty of care and breach. (Code Civ. Proc., § 2017.010.) Privacy is a qualified privilege decided on a case-by-case basis. (Rancho, supra, 68 Cal.App.4th at p. 1549.) The probative value of this discovery outweighs the privacy interests under these circumstances. Defendant has not submitted evidence in support of its privacy objections. These objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 58: All DOCUMENTS showing Harvey Kano's work schedule and time records for May 26, 2024 through June 9, 2024, inclusive (e.g., duty roster, schedule, timecard, punch detail).

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 58:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will grant the motion. Plaintiff has submitted facts justifying the production of documents as to Harvey Kano's work schedule around the time of the slip and fall accident. Plaintiff established that Harvey Kano was responsible for the area at the Premises at issue in this action and cleaned up the area after the incident. (Shaolian Decl., Ex. B at p. 7, ll. 9-28.) Kano's work duties are pertinent to the issue of duty of care and breach. (Code Civ. Proc., § 2017.010.) Privacy is a qualified privilege decided on a case-by-case basis. (Rancho, supra, 68 Cal.App.4th at p. 1549.) The probative value of this discovery outweighs the privacy interests under these circumstances. Defendant has not submitted evidence in support of its privacy objections. These objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 59: All DOCUMENTS that set forth, describe, or reflect HARVEY KANO's responsibilities as to SUBJECT POLICIES in the SUBJECT VICINITY IN EFFECT at the time the SUBJECT INCIDENT (e.g., position summary, assignment memo, delegation note).

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 59: Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will grant the motion. Plaintiff has submitted facts justifying the production of documents as to Harvey Kano's work responsibilities around the time of the slip and fall accident. Plaintiff established that Harvey Kano was

responsible for the area at the Premises at issue in this action and cleaned up the area after the incident. (Shaolian Decl., Ex. B at p. 7, ll. 9-28.) Kano's work duties are pertinent to the issue of duty of care and breach. (Code Civ. Proc., § 2017.010.) Privacy is a qualified privilege decided on a case-by-case basis. (Rancho, supra, 68 Cal.App.4th at p. 1549.) The probative value of this discovery outweighs the privacy interests under these circumstances. Defendant has not submitted evidence in support of its privacy objections. These objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 60: All DOCUMENTS RELATING TO written policies, procedures, protocols, or guidelines for inspection, cleaning, and maintenance of restroom facilities at the SUBJECT PROPERTY at the time of SUBJECT INCIDENT.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 60: Responding party has made a diligent inquiry into the information requested, all responsive documents in its custody and control are produced herewith, namely 1 page "Bistro Daily Training" and "Public Area Attendant Checklist".

RULING: The court will grant the motion. Although Defendant indicates it has made a good faith search for responsive documents and produced them, it appears more likely than not based on the circumstances that additional documents exist. The court will order that the responsive documents be produced after a good faith search. If Defendant has no responsive written policies, it must make a code-compliant representation of inability to comply. (Code Civ. Proc., § 2031.230.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 61:

All DOCUMENTS RELATING TO inspection/cleaning frequency or interval standards for restroom facilities at the SUBJECT PROPERTY in effect at the time of SUBJECT INCIDENT, including schedules, rounds, duty standards, or timing requirements.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 61: Responding party has made a diligent inquiry into the information requested, all responsive documents in its custody and control are produced herewith, namely 1 page "Bistro Daily Training" and "Public Area Attendant Checklist".

RULING: The court will deny the motion. Defendant indicates it has made a good faith search for responsive documents and produced them.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 62: All blank forms, checklists, logs, or digital templates then used to record restroom inspection or cleaning at the SUBJECT PROPERTY at the time of SUBJECT INCIDENT.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 62: Responding party has made a diligent inquiry into the information requested, all responsive documents in its custody and control are produced herewith, namely 1 page "Bistro Daily Training" and "Public Area Attendant Checklist".

RULING: The court will deny the motion. Defendant indicates it has made a good faith search for responsive documents and produced them.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 63: All completed restroom inspection/cleaning checklists or logs for the SUBJECT VICINITY on June 2, 2024, including any electronic entries or exports.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 63: Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the alleged incident did not occur in the restroom.

RULING: The court will grant the motion. Plaintiff has established that the accident occurred near the restroom. The inspection logs for the restroom near the incident on the day of the accident are reasonably calculated to lead to admissible evidence as to potential witnesses, duty, breach, and potential knowledge of a dangerous condition. (Code Civ. Proc., § 2017.010.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 64:

All DOCUMENTS RELATING TO any audit, quality check, or compliance review of restroom inspection/cleaning rounds for the SUBJECT VICINITY from May 1, 2024 through June 30, 2024, including any findings, scorecards, or corrective actions.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 64: Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the alleged incident did not occur in the restroom.

RULING: The court will grant the motion. Plaintiff has established that the accident occurred near the restroom. The inspection logs for this restroom for a reasonable period before the incident are reasonably calculated to lead to admissible evidence as to potential witnesses, duty, breach, and potential knowledge of a dangerous condition. (Code Civ. Proc., § 2017.010.)

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 68: All DOCUMENTS from the personnel file of the individual who signed the "Public Area Attendant Checklist" (Dated 6/2/24) (with personal identifiers such as SSN, DOB, tax, immigration, and health information redacted), limited to: (a) job application and résumé; (b) job descriptions for positions held January 1, 2023 through June 30, 2024; (c) signed policy acknowledgments in effect on June 2, 2024 for SUBJECT POLICIES; (d) training records, certificates, and sign-in sheets on the SUBJECT POLICIES dated January 2023 through June 30 2024; (e) performance evaluations,

counseling, or discipline addressing safety/compliance, housekeeping/inspection, spill response, or signage dated January 1, 2023 through June 30, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 68:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will grant the motion. Plaintiff established that Harvey Kano was responsible for the area at the Premises at issue in this action and cleaned up the area after the incident. (Shaolian Decl., Ex. B at p. 7, ll. 9-28.) Kano's qualifications and personnel file are pertinent to the issue of duty of care and breach. (Code Civ. Proc., § 2017.010.) Privacy is a qualified privilege decided on a case-by-case basis: "The need for discovery is balanced against the magnitude of the privacy invasion, and the party seeking discovery must make a higher showing of relevance and materiality than otherwise would be required for less sensitive material." (Rancho Publications v. Superior Court (1999) 68 Cal.App.4th 1538, 1549 (Rancho).) The probative value of this discovery outweighs the privacy interests under these circumstances. Defendant has not submitted evidence in support of its privacy objections. These objections are overruled.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 69: All DOCUMENTS from the personnel file of any individual identified in REQUEST FOR PRODUCTION OF DOCUMENTS NO. 31 (with personal identifiers such as SSN, DOB, tax, immigration, and health information redacted), limited to: (a) job application and résumé; (b) job descriptions for positions held January 1, 2023 through June 30, 2024; (c) signed policy acknowledgments in effect on June 2, 2024 for SUBJECT POLICIES; (d) training records, certificates, and sign-in sheets on the SUBJECT POLICIES dated January 2023 through June 30 2024; (e) performance evaluations, counseling, or discipline addressing safety/compliance, housekeeping/inspection, spill response, or signage dated January 1, 2023 through June 30, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 69:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will deny the motion. RFP No. 31 did not require the identification of any person. This was a request for production of documents. The court will sustain the objection as to vagueness and ambiguity.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 70:

All DOCUMENTS from the personnel file of any individual identified in REQUEST FOR PRODUCTION OF DOCUMENTS NO. 48 (with personal identifiers such as SSN, DOB, tax, immigration, and health information redacted), limited to: (a) job application and résumé; (b) job descriptions for positions held January 1, 2023 through June 30, 2024; (c) signed policy acknowledgments in effect on June 2, 2024 for SUBJECT POLICIES; (d) training records, certificates, and sign-in sheets on the SUBJECT POLICIES dated January 2023 through June 30 2024; (e) performance evaluations, counseling, or discipline addressing safety/compliance, housekeeping/inspection, spill response, or signage dated January 1, 2023 through June 30, 2024.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 70:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, the request is vague and ambiguous, the request seeks private proprietary information.

RULING: The court will deny the motion. RFP No. 48 did not require the identification of any person. This was a request for production of documents. The court will sustain the objection as to vagueness and ambiguity.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 72:

PRODUCE a complete copy of each and every premises liability insurance policy that was in effect on June 2, 2024, that covers the SUBJECT PREMISES, including all declarations pages, endorsements, riders, and amendments.

DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION NO. 72:

Objection the request is not reasonably calculated to lead to relevant or discoverable evidence, responding party will produce a copy of the relevant insurance declaration page.

RULING: The court grant the motion. "In California our courts determined that insurance information was subject to discovery even in the absence of specific statutory provision for such discovery. [Citations.] [T]he insurance policy is relevant to the subject-matter involved in the personal injury action, although not strictly within the issues raised by the pleadings." (Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal.App.4th 733, 740.) "A party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment." (Code Civ. Proc., § 2017.210.) The fact that "[t]his discovery may include the identity of the carrier and the nature and limits of the coverage" does not mean this discovery is limited only to the declaration pages as contended by Defendant. (See *ibid.*)

The court will deny the motion as to RFP Nos. 71 and 73 referenced in the separate statement, as these RFPs were not referenced in the notice of motion. (Motion, p. 2, ll. 7-8.) The court will also deny the motion as to RFP Nos. 25, 26, 27, 28, 49, since they were not referenced in the separate statement or notice of motion. (Motion, p. 17, ll. 18-20; see *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.) Plaintiff may engage in follow-up discovery on issues related to video surveillance.

(3) Monetary Sanctions

As to monetary sanctions, “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.) Here, the notice of motion requests “an order awarding monetary

sanctions against Defendant and its counsel of record, jointly and severally, in the amount of reasonable expenses incurred in making this motion, including attorney’s fees and costs.” (Motion, p. 2, ll. 12-14.)

“Except as [as to circumstances not present here], the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310.)

“To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: [¶] (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).)

“Misuses of the discovery process include, but are not limited to, the following: [¶] ... [¶] (e) Making, without substantial justification, an unmeritorious objection to discovery.” (Code Civ. Proc., § 2023.010, subd. (e).) “Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.020.)

Here, plaintiff has prevailed on the majority of the motion. Much if not all of this motion should have been avoided through good faith meet and confer efforts. It appears from the record that Defendant took positions in discovery that were not substantially justified, resulting in this motion. Defendant appears to have offered to consider further amended responses, but failed to follow through with a further response or communication. (Shaolian Decl., ¶¶ 14-15 & Exs. M-N.) The court finds Defendant engaged in a misuse of the discovery process. (Code Civ. Proc., §§ 2023.010, subd. (e), (i), 2023.020.)

The court will grant in part the request for monetary sanctions by plaintiff against Defendant and its counsel of record. Plaintiff’s counsel filed a declaration indicating that counsel spent 14 hours pertaining to the discovery issues in this motion at the rate of \$650 dollars per hour. (Shaolian Decl., ¶ 20.) The motion was not fully successful and at least some of the positions by Defendant were based on good faith disputes. The declaration does not indicate specifically how much attorney time was spent on the motion. Based on the circumstances, the court will use its independent judgment and award 4 attorney hours at the rate of \$650 per hour, for a total of \$2,600 in monetary sanctions.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US